

period, but before any confirmation by the Court, to determine the contract.

2. **Must consult the interest of the cestuis que trust.**—A trustee for sale will remember that he is bound by his office to sell the estate under every possible advantage to his *cestuis que trust* (a), and in the case of several successive *cestuis que trust*, with a fair and impartial attention to the interests of all the parties concerned (b). If trustees, or those who act by their authority, fail in reasonable diligence in inviting competition (c), or in the management of the sale (as if they contract under circumstances of haste and improvidence, or contrive to advance the interests of one party at the expense of another), they will be personally responsible for the loss to the suffering party (d); and the Court, however correct the conduct of the purchaser, will refuse at his instance to compel the specific performance of the agreement (e). But if a trustee has once contracted to sell *bonâ fide*, a court of equity will not allow the contract to be invalidated because another person comes forward and is willing to give a higher price (f); and where there are two offers equally advantageous, one of which is preferred by a *cestui que trust*, it is not the duty of the trustees against their own opinion to accept the offer preferred by such *cestui que trust* (g).

3. **Where sale is a breach of trust.**—In no case will the Court enforce the specific performance of a contract which amounts to a *breach of trust* (h).

(a) *Downes v. Grazebrook*, 3 Mer. 208, *per* Lord Eldon; and see *Matthie v. Edwards*, 2 Coll. 480.

(b) *Ord v. Noel*, 5 Mad. 440, *per* Sir J. Leach; and see *Anon. case*, 6 Mad. 11.

(c) *Ord v. Noel*, 5 Mad. 440, *per* Sir J. Leach; and see *Harper v. Hayes*, 2 Giff. 217.

(d) See *Pechel v. Fowler*, 2 Anst. 550.

(e) *Ord v. Noel*, 5 Mad. 440, *per* Sir J. Leach; *Turner v. Harvey*, Jac. 178, *per* Lord Eldon; *Bridger v. Rice*, 1 J. & W. 74; *Mortlock v. Buller*, 10 Ves. 292; and see *Hill v. Buckley*, 17

Ves. 394; *White v. Cuddon*, 8 Cl. & Fin. 766.

(f) *Harper v. Hayes*, 2 Giff. 210, reversed 2 De G. F. & J. 542.

(g) *Selby v. Bowie*, 4 Giff. 300.

(h) *Wood v. Richardson*, 4 Beav. 176, *per* Lord Langdale; *Fuller v. Knight*, 6 Beav. 205; *Thompson v. Blackstone*, 6 Beav. 470; *Sneesby v. Thorne*, 7 De G. M. & G. 399; *Mucholland v. Belfast*, 9 Ir. Ch. Rep. 204; *Saunders v. Mackeson*, W. N. 1866, p. 400; [*Oceanic Steam Navigator Company v. Sutherland*, 16 Ch. D. 236; *Dunn v. Flood*, 25 Ch. D. 629; 28 Ch. Div. 586.]